

ומִשָּׁה: (שמות י"ט:ג') מַתְּן תוֹרָה which discusses the words of מִדְרַש עֲמוּד ב' פה עמוד ב' in מדרש תורה. The time was well known, but its ramifications are not: לְמֶרוֹם - at the time that מִשָּׁה went up on הַר סִינַי, to the higher spheres; רַבּוּנוֹ שֵׁל עוֹלָם - What is a human being doing here amongst us, the celestial beings, beings of perfection? (אֱשֶׁה יְלוּד אֱשֶׁה - A person with all of his defects, his various shortcomings, and all of his various defects). חָקֹדֶשׁ בָּרוּךְ הוּא answered the מלאכים - Hakodosh Baruch Hu came to receive the Torah; they said "The Torah, which was established for 974 generations before we disagree; leave the Torah here. We want it to remain with us." Moshe responded with a puzzling reply: מִתִּירָא אֲנִי שָׂמָּה יִשְׁפּוּנִי בְּהֶבֶל שְׁכֻפִּיהֶם - I'm afraid to answer them with their breath, with the breath from mouths. Like a token, a trinket, a talisman - hold on, and respond. He proceeded to say to them: "The Torah says we were in מצרים. Were you in מצרים? It says ואת אביך ואת אמך. Do you have parents?" And he went through all the מצוות of the תורה which are clearly only to שייד With this, he was able to defeat them.

The sefer החדש התורה, quoted by R' Blum ע"ה, asks: What was the טענה מלאכים? The גמרא doesn't specify what their argument was; it just says they didn't want to give the Torah to human beings. All the מפרשים discuss this. It's difficult to understand their claim, because the Torah was clearly designed for people. What was טענה מלאכים?

The טענה was a simple one. There were two options here. There was an option to leave the Torah with the מלאכים who would only be מקיים those parts of the Torah that they are able to, but they would do so perfectly, or it could be given to people, who would fulfill it to the best of their imperfect abilities. No person can keep the entire Torah. And we know that we often fail in fulfilling the מצוות of both תורה הקדוש ברוך הוא. A person's נטיה is to do עבירות and not to keep the Torah. So when התקזיר לָתֵן תְּשׁוּבָה said to Moshe - give them an answer, the word תשובה not only means give them an answer, but give the מלאכים the תירוץ that we can utilize תשובה to defeat the מלאכים in their טענה. The ability to do תשובה allows us to be מכפר on all of our עבירות, and a person can be considered as if he kept the Torah with perfection. But משה רבינו said, "No, I can't do that, אַחֲזִי כְפֶסֶא כְבוֹדִי," which means what? מלאכים are on a higher מדרגה. They don't have any עבירות. That is the הבל שבפיהם, their complete רוחניות and spirituality is their perfection. גדולה תְּשׁוּבָה שְׂמַנְעַת: מסכת יומא פ"ו ע"א answered him, אַחֲזִי כְפֶסֶא כְבוֹדִי, as it says in e.g. מלאכים are on a higher מדרגה than those who don't have any עבירות.

Rabbi Oelbaum recently discussed this point and made an interesting comment. He said **הקדוש ברוך הוא** is in **שמים** surrounded by **מלאכים**, but there's a little space between **הקדוש ברוך הוא** and the **מלאכים**. That little space, right next to the **כיסא הכבוד**, is off-limits to the **מלאכים**. Who can go there? A human being has the ability if he works hard enough.

This answers most of our questions, but there's only one problem. The מלאכים did not agree with this טענה, with this argument that בעלי תשובה are on a higher מדרגה. In their view, any person who has done an עבירה cannot possibly be on the same level as someone who's spotless, who's flawless, whose record is clean as a whistle, had no עבירות at all. משה didn't have a real answer to this, until we come to the pasuk that gives us the final answer. We have beings that have never sinned. Their record is spotless. Who are they? תינוקות של בית רבן. קינדערלאך. All of our little קינדערלאך, each and every one of them, are on a higher מדרגה, because they are without חטא. So we have both: we have the concept of תשובה, and we also have the חטא שאין בו חטא, we have those קינדערלאך who are giving us the ability to accept the Torah, as it says in the pasuk, מפי עוללים וינקים יסדת עז (תהלים ח'ג'). It was only in the זכות of those little



קינדערלאך that were able to get the Torah, not in the זכות of the אבות, not in the זכות of our מצוות, not in the זכות of our Torah or even of our גמילות חסדים. It was in the זכות of the תינוקות של בית רבן. All of our הר סיני at תורה - they should all live and be well and געזונט - are what gave us the ability to get the תורה and for דורות.

